

justify renewed oral proceedings (see T.748/91, T.692/90, T.755/90, T.25/91, T.327/91 and T.941/16).

In T.298/97 (OJ 2002, 83) the board observed that the right to oral proceedings was not to two oral proceedings on the same subject. Any further oral proceedings on the issue of admissibility would therefore be a matter for the board's discretion.

In T.547/88 the board rejected the request for further oral proceedings. The purpose of continuing the proceedings in writing after the first oral hearing was merely to provide further clarification of the same facts. In addition, in T.614/90 the board rejected the request to comment in writing on the board's reasons for refusing further oral proceedings because the reasons for the refusal had already been given in a communication.

In T.529/94 the examining division, in exercising its discretionary power under R. 86(3) EPC 1973, had considered newly filed claims 3 and 4 as inadmissible. The board held that the legal consequence of this was that claims 3 and 4 were never integrated into the text of the application and never became part of it. For this reason, refusing to hold oral proceedings a second time, during which proceedings it was intended to discuss the allowability of proposed amendments already judged as inadmissible, could not constitute a procedural violation.

4.4.2 Not the same subject of proceedings

In T.731/93 the board stated that where fresh evidence had been admitted into the proceedings, the "subject" of such proceedings, as construed by reference to the text of Art. 116(1) EPC 1973 in all three official languages, could no longer be the same.

In T.194/96 new citations were submitted after the first oral proceedings that were more pertinent than the documents on file and which could and in fact did radically change the nature of the decision. The board held that in such a case the subject of the proceedings could no longer be the same.

In T.1880/11 after the board had in a first decision ordered a patent to be granted on the basis of the main request and the description to be adapted accordingly, the examining division refused the application a second time without holding oral proceedings. The board held that there had been a new subject before the examining division, namely how to adapt the description and the figures in order to fulfil the board's order. It could at least have been discussed during oral proceedings whether the section of the first appeal decision on which there was disagreement between the division and the applicant belonged to the ratio decidendi of that decision and how this section should be interpreted.

In T.2106/09 the board had in a previous decision remitted the case to the opposition division. In its statement of grounds for the earlier appeal, the appellant had changed the subject of the proceedings by introducing a new citation and claiming a lack of inventive step on the basis of a combination of the teachings of various citations. The opposition division had thus been wrong to consider that the subject of the proceedings was the same

and, by issuing the contested decision without holding oral proceedings, as requested by the appellant, it had infringed the right to be heard. See T 120/96, T 679/97, T 1548/11.

In T 1775/12 the board held that the procedural issue of admission under R. 137(3) EPC of amendments filed in response to a communication under R. 71(3) EPC constituted a "subject of the proceedings" within the meaning of Art. 116(1) EPC, second sentence, EPC which was distinct from the discussion of matters of substantive law that had previously taken place at oral proceedings.

4.5. Auxiliary request for oral proceedings

There is no requirement in the EPC or in the case law that only unconditional requests to oral proceedings are admissible. It is normal practice to request oral proceedings e.g. only for the eventuality of an imminent adverse decision (see inter alia T 870/93, T 1136/10). According to the established practice of the boards of appeal, a request for oral proceedings on an auxiliary basis is interpreted as a request for oral proceedings unless the board intends to decide the case in favour of this party (see T 3/90, OJ 1992, 737).

In T 344/88 the appellants requested that oral proceedings be held if the opposition division intended to maintain the patent in whole or in part. The opposition division rejected the opposition as inadmissible without appointing oral proceedings. The board found that while it was true that, in rejecting the opposition as inadmissible, no formal decision had been taken to maintain the patent, this was nevertheless the consequence of the decision.

According to the established case law, a party is not adversely affected by a decision to remit a case for further prosecution, and for this reason there is no need to grant an auxiliary request for oral proceedings (see inter alia T 147/84, T 222/87, T 42/90, T 924/91, T 47/94, T 1434/06, T 1367/12, T 1727/12, T 1205/13).

In T 902/04 the board held that, since the opponent's request was allowed, there was no need to hold the oral proceedings which only the opponent had requested on a purely auxiliary basis. See also T 545/08, T 749/15.

4.6. No oral proceedings – decision in favour of the party

In their statement of grounds of appeal the appellants in T 494/92 made an unconditional request for oral proceedings. The board stated that in view of the positive conclusion it had reached regarding the question of inventive step, and in the absence of any other substantive and/or procedural issues, such oral proceedings would serve no purpose. The board thus treated the request as merely conditional (see also T 2445/11). In T 1050/09, the opposition division, referring to T 494/92, had treated the opponent's unconditional request for oral proceedings as merely conditional as it had decided in favour of the opponent. The board agreed and added that a successful party had no reason to doubt the correctness of the procedure leading to the decision in its favour.

4.7. Request for oral proceedings in relation to further prosecution proceedings after remittal

According to the established case law, "further prosecution" proceedings on remittal by the board of appeal are to be regarded as a continuation of the original opposition proceedings, particularly where the original interlocutory decision had been set aside by the board and was therefore no longer legally effective. Thus, with remittal, parties' requests valid in the opposition proceedings, including any auxiliary request for oral proceedings, become effective again, if they were not withdrawn (T 892/92, T 120/96, T 742/04, T 1425/05, T 1548/11).

In T 1866/08 the board considered that the appeal procedure was separate from the examination procedure (see, for example, G 8/91, T 34/90). It followed that a request for oral proceedings to be held before the examining division could not validly be made during the appeal proceedings. As a consequence, the appellant would have to file a new request for oral proceedings after the procedure was resumed by the examining division. T 901/10 confirmed T 1866/08, adding that a request for oral proceedings in possible further appeal proceedings in the future would have to be requested again during such proceedings.

4.8. Request for oral proceedings as a reply to a communication

In T 1382/04 the appellant had been invited to file observations on the board's communication under R. 100(2) EPC. Failure to reply to such an invitation in due time would result in the application being deemed withdrawn (R. 100(3) EPC). The appellant had not made any substantive observations on the board's communication but had filed a request for oral proceedings. The board considered the request for oral proceedings as a reply avoiding a deemed withdrawal under R. 100(3) EPC. Similarly, the board in T 861/03 stated that a request for oral proceedings could be a valid reply to a communication under Art. 96(2) EPC 1973 (now Art. 94(3) EPC).

5. Non-attendance at oral proceedings

The absence of parties from oral proceedings is in general governed by R. 115(2) EPC and – for the boards of appeal – by Art. 15(3) and (6) RPBA 2020. Concerning non-attendance at oral proceedings before the examining division, see also the notice from the EPO, OJ 2020, A124.

According to Art. 15(3) RPBA 2020, the board is not obliged to delay any step in the proceedings, including its decision, by reason only of the absence at the oral proceedings of a party duly summoned who may then be treated as relying only on its written case (see also Art. 15(3) RPBA 2007, which has essentially the same wording as Art. 15(3) RPBA 2020). The board may therefore, in accordance with Art. 15(6) RPBA 2020, ensure that the case is ready for decision at the conclusion of the oral proceedings, unless there are special reasons to the contrary.

5.1. Right to present comments and non-attendance of a party by choice

According to T 1500/10 R. 115(2) EPC makes it clear that the oral proceedings are themselves an opportunity for the applicant to present its comments, in accordance with Art. 113(1) EPC. If a party decides not to attend the oral proceedings without a serious reason, it chooses not to make use of the opportunity to comment at the oral proceedings on any of the objections raised during them, and it has no right to make additional written submissions. Serious reasons are the same reasons that could justify postponement of oral proceedings (see in this chapter III.C.6.1.4).

In T 1339/14 the board held that the purpose of oral proceedings was to give parties an opportunity, in addition to their written submissions, to make their cases orally as well, and to be heard in this form. Oral proceedings also enabled parties to amend their cases and to respond directly in that forum to any such changes made by the opposing party. A party who failed to attend the oral proceedings forfeited this opportunity.

In T 1801/17 the board noted that there is no legal obligation to attend the oral proceedings. The patent proprietor dealt with all the outstanding objections during the written opposition proceedings, including filing auxiliary requests aimed at overcoming the added subject-matter ones known at the time. This was a legitimate way of defending oneself against an opposition and does not suggest any intention to avoid a ruling on the matter at first instance. By proceeding in this way, the proprietor did not forfeit the right to defend itself in appeal against objections that were only raised during oral proceedings.

On the question of whether a decision pronounced against a party who has chosen not to attend oral proceedings may be based on new facts, evidence and/or arguments introduced during those oral proceedings, see chapter III.B.2.7. "The right to be heard in case of the non-attendance at oral proceedings".

5.2. Non-attendance of party who filed new claims without amended description before oral proceedings; no reason for postponement of ruling

In T 917/95 the board held that a patentee who, in inter partes proceedings, filed a new claim but no amended description prior to the oral proceedings before the board of appeal and who failed to attend the oral proceedings could not rely on the board's postponing its ruling simply to permit amendment of the description, even if the new claim was grantable (see also T 725/00, T 109/02, T 181/02, T 776/05, T 651/08, T 2294/08). In T 1810/06 the board extended this finding of T 917/95 to an ex parte case. In T 985/11 the board stated that it still has discretion under Art. 111 EPC to decide how to proceed in this situation, and in particular whether to remit the case to the opposition division for adaptation of the description or exercise the powers of the opposition division and either continue the proceedings in writing or revoke the patent.

5.3. Obligation to give notice if not attending oral proceedings

In T 653/91 the board held that if, having been summoned to oral proceedings, a party did not wish to attend such proceedings, both the board (through its registrar) and any other

parties to the proceedings should be notified in writing of this fact as early as possible before the appointed day. Except in special circumstances, telephone communications concerning such matters were inappropriate, especially in inter partes proceedings. See also T. 692/00.

In T. 692/00 the board held that for the appellant (patent proprietor) to announce shortly before the appointed date for oral proceedings that it might or might not attend while maintaining its request for oral proceedings could only be an abuse of procedure.

In T. 69/07 the respondent had requested oral proceedings but did not appear at the oral proceedings at the appointed time. The board noted that, in accordance with Art. 6 of the Code of Conduct of Members of the EPO, of which the representative is obligatorily a member, the members are required to act courteously in their dealings with the EPO. The representative of the respondent had had sufficient time to inform the board of its intended non-appearance at the oral proceedings. This would have avoided keeping the other party and the board first of all courteously waiting for the representative in case he had unintentionally been delayed, and then obliging the registrar of the board to carry out enquiries to establish if the representative intended to attend the oral proceedings. See also T. 954/93, T. 1760/09, T. 1939/10.

In T. 930/92 (OJ 1996, 191) the board also pointed out that there was an equitable obligation on every party summoned to oral proceedings to inform the EPO as soon as it knew that it would not attend as summoned. This was the case whether or not that party had itself requested oral proceedings, and whether or not a communication had accompanied the summons to oral proceedings. See also T. 556/96, T. 258/13. In these inter partes cases, the boards held that an apportionment of costs in favour of the attending party was justified.

In T. 533/15 the board stated that the number of oral proceedings that could be held each day was severely limited, due to COVID-19 measures, and this meant that many proceedings had been cancelled or postponed. By informing the board only two days before the oral proceedings, the appellant made it impossible to use the hearing room for a different case. This was unfortunate and was something that parties should try to avoid.

In T. 13/19 the board stated that a party communicating as early as possible its intention not to attend the oral proceedings, or any impediment to attending, amounted to the usual degree of courtesy owed to a board of appeal as a court of final appellate jurisdiction.

See also ex parte cases T. 1485/06, T. 1930/07, T. 218/11, in which the boards noted that a professional representative has a duty to inform the EPO, as soon as possible, of a party's intention not to be represented at oral proceedings.